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Should there be a standard format for reply to the RTI Applications?

30 Mar, 2015

A Committee comprising representatives of Department of Personnel & Training (DoPT), the Ministry of Home Affairs (MHA) and Central Information Commission (CIC) was constituted to derive a standard format for the Public Information Officers (PIO) to reply to the applications filed under the Right to Information (RTI) Act, 2005. The Committee recommended that there should not be a standard format for reply to the RTI Application as there is no such provision in the RTI Act or RTI rules. However, the Committee recommended that few points can be uniformly adopted by the PIOs which have been taken up in the form of draft guidelines after consultation with the Ministry of Law and Justice.

The DoPT has sought views on the draft from the public which may be sent preferably upto one page to RK Girdhar, US (RTI), North Block at email id usrti-dopt@nic.in latest by 16th April through email only. The draft guidelines include:-

1. The name, designation, official telephone number and email ID of the PIO or Central PIO (CPIO).

2. In case the information requested for is denied, detailed reasons for denial quoting the relevant sections of the RTI Act should be clearly mentioned.

3. In case the information pertains to any other pubic authority and the application is transferred under Section 6(3) of the RTI Act, details of the public authority to whom the application is transferred should be given.

4. In the concluding para of the reply, it should be clearly mentioned that the first appeal if any, against the reply of the CPIO may made to the FAA within 30 days from receipt of reply of CPIO.

5. The name, designation, address, official telephone number and email ID of the FAA should also be clearly mentioned

6. In addition, wherever the applicant has requested for 'certified copies' of the documents on records, the CPIO should endorse on the document 'True copy of the document/ record', sign the document with date above a seal containing name of the officer, CPIO (in place of designation) and name of public authority.

The move by DoPT has been welcomed by many citizens and RTI activists. Such a step is likely to lead to:-

1. It would help the PIOs in replying to the RTI applications in a better manner.

2. It would aid in having uniformity in the replies sent by the PIOs.

3. It is likely to lead to less number of appeals and thus lead to more transparency.

The DoPT circular can be viewed at: http://ccis.nic.in/WriteReadData/CircularPortal/D2/D02rti/10-1-2013-IR.pdf

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